home demolitions. Municipal officials said they would resign if the town voted in favor. “The army may come and do things that upset us, but there have to be limits,” said Ezri Tubi, a resident who serves as a spokesman for the settlement. “This vote is an internal vote, to decide what boundaries need to be set in harsh situations like this.”

The blue-eyed paratrooper

The settlements are perhaps the clearest example of a modern problem created by Israel’s oft-romanticized early governments. They did not simply appear out of thin air. Nor were they solely the work of a few determined individuals, as the more hagiographical works written about the settler movement can suggest. Instead they were the result of a specific policy decision by the Israeli government—a decision that was taken in the face of objections from the government’s own legal adviser.

The first settlement was established in September 1967, just months after the Six-Day War that gave Israel control of the West Bank. Shortly after the ceasefire, Israeli activists started to petition the government to authorize Jewish communities in the newly-occupied territories. One of them was Hanan Porat, a young man who grew up in Kfar Etzion, a pre-state community southwest of Bethlehem. His village had particular emotional resonance for Israelis: it had been destroyed by Arab armies in a fierce two-day battle during the war of independence. More than 120 people (a mix of combatants and civilians) had been killed. In some accounts of the battle, they had been shot after the village surrendered. Porat, a former paratrooper, wanted to rebuild it.

The government asked Theodor Meron, the legal adviser at the foreign ministry, to draft an opinion on the relevant points of international law. His classified memo—which was not released until forty years later—was fairly unequivocal, outlining the Fourth Geneva Convention’s ban on settling civilians in occupied territory. “The prohibition therefore is categorical and not conditional upon the motives for the transfer or its objectives,” he wrote. “If it is decided to go ahead with Jewish settlement in the administered territories, it seems to me vital, therefore, that settlement is carried out by military and not civilian entities. It is also important, in my view, that such settlement is in the framework of camps and is, on the face of it, of a temporary rather than permanent nature.”